

(c) For the reference to section sixty-nine of the Local Government Act, 1888, there shall be substituted a reference to Article 22 of the Schedule to the Local Government (Application of Enactments) Order, 1898 :

(d) For the reference to the Public Health Acts, 1875 to 1908, there shall be substituted a reference to the Public Health (Ireland) Act, 1878 to 1919 :

(e) Where the Minister or a local authority have power to acquire land compulsorily by virtue of section two of this Act, the power shall be exercisable in like manner as a power to acquire land compulsorily is exercisable by virtue of a provisional order made under section ten of the Local Government (Ireland) Act, 1898, and duly confirmed, and the provisions with respect to the service of notice under section eighteen of the Lands Clauses Consolidation Act, 1845, shall not apply.

61 & 62 Vict.
c. 37.

Short title;

7.—(1) This Act may be cited as the Unemployment (Relief Works) Act, 1920.

(2) This Act shall continue in force for twelve months and no longer unless Parliament otherwise determines :

Provided that the expiry of this Act shall not

(a) affect the previous operation thereof or of anything duly done or suffered thereunder ; or

(b) affect any right, privilege, obligation or liability acquired, accrued or incurred thereunder ; or

(c) affect any legal proceeding, arbitration, remedy or investigation in respect of such right, privilege, obligation or liability as aforesaid ;

and any such legal proceeding, arbitration, remedy or investigation may be instituted, enforced or continued as if this Act had not expired.

CHAPTER 58.

An Act to continue temporarily and give effect to certain orders relating to the early closing of shops and for purposes connected therewith.

[3rd December 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The order made by the Secretary of State dated the twenty-fourth day of April nineteen hundred and seventeen,

Temporary
continuance
of certain

under Regulation 10B of the Defence of the Realm Regulations as amended by any subsequent orders (which order as so amended is set out in Part I. of the Schedule to this Act), shall continue in force notwithstanding the expiry of the Defence of the Realm (Consolidation) Act, 1914, and shall have effect in the area of any local authority as if it were a closing order made and confirmed under the Shops Act, 1912, and subsection (5) of section five and sections thirteen and fourteen of that Act shall apply accordingly: Provided that the Secretary of State may, for such days as he thinks fit, suspend the operation of the said order during the Christmas season, or in connection with any other special occasion.

orders for the
early closing
of shops.

5 Geo. 5. c. 8.

5 Geo. 5. c. 3.

(2) The said order shall, as from the passing of this Act, cease to have effect as an order made under the said regulation.

(3) In the application of this Act to Scotland this Act shall have effect as if for references to the said order there were substituted references to the order made on the twenty-sixth day of April nineteen hundred and seventeen by the Secretary for Scotland, as amended by any subsequent orders (which order as so amended is set out in Part II. of the Schedule to this Act), and as if for references to the "Secretary of State" there were substituted references to the "Secretary for Scotland."

2.—(1) This Act may be cited as the Shops (Early Closing) Act, 1920, and this Act and the Shops Acts, 1912 and 1913, may be cited together as the Shops Acts, 1912 to 1920.

Short title,
extent, and
duration.

(2) This Act shall not extend to Ireland.

(3) This Act shall continue in force until the thirty-first day of December nineteen hundred and twenty-one and no longer.

SCHEDULE.

Section 1.

PART I.

ORDER OF THE SECRETARY OF STATE, DATED APRIL 24, 1917, AS AMENDED BY SUBSEQUENT ORDERS, MADE UNDER REGULATION 10B OF THE DEFENCE OF THE REALM REGULATIONS.

1.—(a) Every shop shall be closed for the serving of customers not later than 8 o'clock in the evening on every day other than Saturday and not later than 9 o'clock in the evening on Saturday, and in the case of a contravention of this provision the occupier of the shop shall be liable to a penalty; and

(b) Any person who carries on in any place not being a shop any retail trade or business after 8 o'clock in the evening on any

day other than Saturday or after 9 o'clock in the evening on Saturday shall be liable to a penalty.

2. This Order shall not prevent—

(1) the serving of a customer where it is proved that the customer was in the shop before the closing hour or that reasonable grounds existed for believing that the article supplied after the closing hour to a customer was required in a case of illness; or

(2) the sale after the closing hour of—

(a) meals or refreshments for consumption on the premises; or (in the case of meals or refreshments sold on railway premises) for consumption on the trains;

Provided that in the case of canteens attached to and situated within or in the immediate vicinity of any works, if persons are employed at such works after the closing hour, and the canteen is kept open only for the use of such persons, meals or refreshments may be sold after the closing hour for consumption anywhere within the works premises;

(b) newly cooked provisions to be consumed off the premises;

(c) any fresh fish or tripe or soft fruit which would become unfit or less suitable for food if kept till the following day;

(d) intoxicating liquors to be consumed on or off the premises;

(e) medicine or medical or surgical appliances, so long as the shop is kept open and lighted only for such time as is necessary for serving the customer;

(f) newspapers;

(g) periodicals and books from the bookstalls of such terminal and main line stations as may be approved by the Secretary of State;

(h) motor or cycle supplies or accessories for immediate use, so long as the shop is kept open and lighted only for such time as is necessary for serving the customer;

(i) victuals, stores, or other necessities required by any naval or military authority for His Majesty's forces or required for any ship on her arrival at or immediately before her departure from a port, so long as the shop is kept open and lighted only for such time as is necessary for serving the customer;

The expression "soft fruit" in paragraph (c) shall mean the following fruits:—apricots, bilberries, blackberries, cherries, currants (black, red, and white), green figs, greengages, gooseberries, loganberries, mulberries, peaches, plums, raspberries, strawberries; or

(3) the transaction after the closing hour of any post office business.

3. This Order shall not apply to any fair lawfully held or any bazaar or sale of work for charitable or other purposes from which no private profit is derived.

4. The expressions "shop" and "retail trade or business" in this Order have the same meaning respectively as in the Shops Act, 1912.

For the purposes of the exemption relating to the sale of meals or refreshments, (a) tobacco supplied at a meal for immediate consumption shall be deemed to form part of the meal; (b) refreshments shall not be deemed to include sweets, chocolate, or other sugar confectionery or ice cream.

5. This Order shall not affect any obligation to comply with the provisions of the Shops Acts, 1912 and 1913, or any order made thereunder, or any other Act, order, or regulation restricting hours of sale or the hours of transaction of business.

6. This Order shall be in force from the 1st May 1917 until further order.

PART II.

ORDER OF THE SECRETARY FOR SCOTLAND, DATED APRIL 26, 1917, AS AMENDED BY SUBSEQUENT ORDERS, MADE UNDER REGULATION 10B OF THE DEFENCE OF THE REALM REGULATIONS.

1.—(a) Every shop shall be closed for the serving of customers not later than 8 o'clock in the evening on every day other than Saturday and not later than 9 o'clock in the evening on Saturday, and in the case of a contravention of this provision the occupier of the shop and any manager, agent, servant, or other person by whom the contravention has in fact been committed shall be liable to a penalty; and

(b) Any person who carries on in any place not being a shop any retail trade or business after 8 o'clock in the evening on any day other than Saturday or after 9 o'clock in the evening on Saturday shall be liable to a penalty.

This Order shall not prevent—

(1) the serving of a customer where it is proved that the customer was in the shop before the closing hour or that reasonable grounds existed for believing that the article supplied after the closing hour to a customer was required in a case of illness; or

(2) the sale after the closing hour of—

(a) meals or refreshments for consumption on the premises;

Provided that (1) in the case of railways, meals or refreshments may be sold after the closing hour on the railway premises to persons about to travel by rail; (2) in the case of canteens attached to and situated within or in the immediate vicinity of any works, if persons are employed at such works after the closing hour, and the canteen is kept open only for the use of such persons, meals or refreshments may be sold after the closing hour for consumption anywhere within the works premises;

(b) newly cooked provisions to be consumed off the premises;

(c) any fruit specified in the schedule to this Order or any fresh fish or tripe;

- (d) intoxicating liquors to be consumed on or off the premises;
 - (e) medicine or medical or surgical appliances, so long as the shop is kept open and lighted only for such times as is necessary for serving the customer;
 - (f) newspapers;
 - (g) periodicals and books on railway premises to persons about to travel by rail;
 - (h) motor or cycle supplies or accessories for immediate use, so long as the shop is kept open and lighted for such time only as is necessary for serving the customer;
 - (i) victuals, stores, or other necessities required by any naval or military authority for His Majesty's forces or required for any ship on her arrival at or immediately before her departure from a port, so long as the shop is kept open and lighted only for such time as is necessary for serving the customer; or
- (3) the transaction after the closing hour of any post office business.

3. This Order shall not apply to any fair lawfully held or to any bazaar or sale of work for charitable or other purposes from which no private profit is derived.

4. The expressions "shop" and "retail trade or business" in this Order have the same meaning respectively as in the Shops Act, 1912.

For the purposes of the exemption relating to the sale of meals or refreshments, (a) tobacco supplied at a meal for immediate consumption shall be deemed to form part of the meal; (b) refreshments shall not be deemed to include sweets, chocolate, or other sugar confectionery or ice cream.

5. This Order shall not affect any obligation to comply with the provisions of the Shops Acts, 1912 and 1913, or any order made thereunder, or any other Act, order, or regulation restricting hours of sale or the hours of transaction of business.

6. This Order shall be in force from the 1st May 1917 until further order, and shall apply throughout Scotland.

S C H E D U L E.

LIST OF EXEMPTED FRUITS.

Cherries.	Apricots.	Blaeberries.
Black currants.	Plums.	Loganberries.
Red currants.	Greengages.	Blackberries.
Strawberries.	Gooseberries.	Mulberries.
Raspberries.	Peaches.	Green figs.
